

Brijesh Kumar Singh v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 19 September 2013 · Writ-C No. 49800 of 2013 · **Writ dismissed; relegated to para 4.29 Executive Engineer.**

HEADNOTE

A grievance that a further connection is being given from an already overloaded transformer on the consumer's premises, without consent and to the prejudice of his supply or transformer safety, is to be raised under para 4.29 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer. The writ was dismissed for alternative remedy, with a direction that any such complaint be considered expeditiously.

FACTUAL SUMMARY

Brijesh Kumar Singh, an agricultural consumer, was aggrieved that a connection was being given to respondent No. 5 from a 10 KVA transformer installed on his plot No. 934. He alleged the transformer was already overloaded, that a further connection would threaten his supply and the transformer's safety, and that respondent No. 5, with whom he was on inimical terms, was disrupting electricity to his fields. His representation of 24 August 2013 to the District Magistrate, Ballia, was pending. Purvanchal Electricity Distribution Corporation were respondents 2 to 4.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29

transformer overload; additional connection; alternative remedy

HOLDING

Complaints that a consumer's transformer is overloaded, that no further connection can be given from it without his consent, and that another connection would reduce effective supply or threaten the transformer, are to be raised under para 4.29 of the U.P. Electricity Supply Code, 2005 to the concerned Executive Engineer, who may consider the complaint expeditiously. The writ was dismissed on the ground of alternative remedy. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A grievance that a further connection is being given from an already overloaded transformer on the consumer's premises, without consent and to the prejudice of his supply or transformer safety, is to be raised under para 4.29 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S 10 KVA TRANSFORMER WAS OVERLOADED, WHETHER A FURTHER CONNECTION COULD BE GIVEN WITHOUT HIS CONSENT, AND WHETHER THAT CONNECTION WOULD REDUCE EFFECTIVE SUPPLY OR THREATEN TRANSFORMER SAFETY.

Left to the Executive Engineer under para 4.29. ¶ 1